

Mitaben vs Kush on 20 April, 2010

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Bench: K.M.Thaker

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MCA/830/2010 7 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

MISC.CIVIL
APPLICATION - FOR TRANSFER No. 830 of 2010

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MITABEN
KUSHBHAI THAKER - Applicant(s)

Versus

KUSH
DIPAKBHAI DINKARRAI - Opponent(s)

=====

Appearance
:
MR
SATYEN B RAWAL for
Applicant(s) : 1,
None for Opponent(s) :
1,
=====

CORAM

:

HONOURABLE

MR. JUSTICE K.M. THAKER

Date
: 20/04/2010

ORAL ORDER

The applicant has preferred present application with a request that the proceeding of Hindu Marriage Petition No. 1004 of 2009 (filed by present opponent) may be transferred from the Family Court, Ahmedabad to the District Court, Surendranagar.

2. The applicant has averred that the marriage between the applicant and opponent took place on 23rd October 2004, however after some time the applicant was forcibly driven out by the opponent and his family members. The applicant has also averred that because of the attitude and conduct of the opponent she was constrained to lodge a complaint, on or around 6th October 2009, in connection with the incident which, occurred on 29th September 2009.

3. It is pertinent that from the application it does not come out as to whether applicant has instituted any proceeding, except aforesaid complaint dated 6th October 2009, against the opponent and/or in connection with the marriage or for any other purpose. Therefore, the Court inquired from the applicant's advocate as to whether any proceeding, except the aforesaid complaint dated 6th October 2009, have been instituted by the applicant or not.

4. The applicant's advocate fairly admitted that except the aforesaid complaint dated 6th October 2009 (which has been filed with the D.S.P. Surendranagar) in connection with the incident which allegedly occurred on 29th September 2009, the applicant has not instituted any proceeding whatsoever any where much less at Surendranaga where the applicant wants the H.M.P. proceedings transfer to.

5. In view of the chronology of events mentioned in the application, it emerges that the H.M.P. proceedings have been filed by the opponent on or around 13th August 2009 (i.e. much prior to the complaint filed on 6th October 2009). Differently put, it is the applicant who filed the said complaint after H.M.P. proceedings instituted by the opponent.

6. It also emerges from the record of the application that the applicant herein has already filed on or around 7/12/2009, her reply/written statement against the H.M.P. No. 1004 of 2009 (filed by present opponent).

6.1 Accordingly the applicant herein has already entered her appearance through her advocate in the proceeding of H.M.P. No. 1004 of 2009 and in her reply/written statement filed on or around 7/12/2010 she has already raised objection about the maintainability of the H.M.P. No. 1004 of 2009 in the Family Court at Ahmedabad on the ground that in view of the Provision under Section 19 of the Hindu Marriage Act, the Family Court at Ahmedabad would not have jurisdiction to entertain the H.M.P. No. 1004 of 2009 filed by the opponent since the marriage was solemnized at Surendranagar and until presentation of the petition neither the applicant nor the opponent has ever stayed at Ahmedabad. In other words the applicant has already opposed the maintainability of the application in the Family Court at Ahmedabad.

7. Since then (i.e. after having filed the reply/written statement on or around 7/12/2009) the applicant does not appear to have taken any steps to get the said issue/objection decided by the learned Family Court. It does not appear that the applicant gave any application before this Court or made any request to the learned Family Court to decide the said objection as a preliminary issue.

7.1 Having raised the said objection the applicant, on one hand, does not appear to have pursued the said objection whereas on the other hand applicant has now preferred present application seeking transfer of the proceedings of H.M.P. No. 1004 of 2009 to Surendranagar without pursuing the objection about maintainability of the H.M.P. proceedings at Ahmedabad.

8. The aforesaid feature of the applicant is required to be considered also in light of the fact that the applicant has not preferred any proceeding except the complaint of which the reference has been made hearinabove earlier. Even the said complaint has been filed much after the H.M.P. proceedings were instituted.

8.1 Thus, present case is not the case in which transfer of proceeding from one Court to another court is prayed for on the ground that some other proceeding is pending in another Court and that it would be convenient and practicable if both the proceedings are tried at the same place/in the same Court.

9. On this count it is relevant to note that the applicant has essentially urged only two contentions in support of the application namely (a) that the H.M.P. proceedings before the Family Court, Ahmedabad is without jurisdiction since no cause of action has arisen within the jurisdiction of Family Court at Ahmedabad; and (b) that the application has been filed with deliberate design and ulterior motive to harass the petitioner.

9.1 It would be appropriate to take into account some of the averments made by the applicant in the application, under the heading ground in support of the application. The averments read thus:-

(a) That the filing of divorce petition by the respondent before the Family Court, Ahmedabad is without jurisdiction and based on no cause of action

(b) That considering the relevant legal provisions as contained in the Hindu Marriage Act, 1955 and more particularly Section 19 thereof, no part of cause of action has at all within the territorial limits of Ahmedabad Family Court.

(C) That the institution of the divorce petition at Ahmedabad Family Court is nothing but a deliberate design to harass the petition with an ulterior to dictate the terms.....

(d) That the overall circumstances of the present case, goes to indicate that the respondent is leaving no stones unturned to harass the petitioner.....

(e) That is really shocking to point out only with a view to wrongly attribute the jurisdiction to the Family Court Ahmedabad, false facts are stated in the petition and even the imaginary address of residence is also shown in the cause title.....

(f) That the deliberate act of the respondent by giving the false address to gain wrongful gain with an ulterior motive.....

On the basis of the aforesaid averments and allegations the applicant has preferred present application.

9.2 The reason stated in sub-para (a) is an issue which should be decided first by the learned Trial Court. The applicant seeks transfer of proceedings on the allegations mentioned in sub-para (b) to (f). However the said allegations are not of such nature that can be accepted without evidence. Unless it is shown that the said allegations were duly established and proved with aid of evidence, this Court cannot accept them and proceed on such ground and order transfer of proceedings on the basis of such allegations. They must first substantiate such allegations.

9.3 On perusal of the averments it comes out that no where the applicant has made whisper about any difficulty or inconvenience which she might have to face in attending the proceeding at Ahmedabad.

9.4 There is no reference about any inconvenience or difficulty and the only thrust of the entire application is that the opponent has filed application with a view to harass the applicant. The aforesaid aspect has been taken note of only with a view to bringing out the fact that the applicant has not preferred application on the ground of difficulty or inconvenience.

9.5 On the other hand the applicant has raised contention of law and questioned the territorial jurisdiction of the Family Court at Ahmedabad.

10. Now without getting the said issue adjudicated and decided and without inviting any decision from the learned Family Court on the said issue the applicant has preferred present application seeking transfer of the proceedings.

10.1 The applicant is not seeking transfer of the proceedings on ground of difficulty or inconvenience. She is also not seeking transfer of the proceeding. on the ground that any other proceedings are pending at Surendranagar.

11. Under the circumstances in view of the facts of present case it appears that it would be appropriate that the issue about jurisdiction, as raised by the applicant in her written statement/reply filed before the Family Court, is decided first as preliminary contention/objection. More so when the objection has been raised in the written statement filed on or around 7th December 2009. In the event the Family Court accepts the applicant's contention and holds in favour of the applicant that H.M.P. is not maintainable in Family Court at Ahmedabad, the H.M.P. proceedings will stand terminated from the Family Court at Ahmedabad however, at this stage when the said issue is at large before the Family Court and has been expressly raised by the applicant, it is appropriate to require the applicant to get the objection decided by the learned Tribunal where it would be practicable for the learned Tribunal to decide the said issue after considering all relevant aspects and if need be by inviting oral or documentary evidence to ascertain as to whether either of the parties stay, or earlier stayed, at Ahmedabad or if the marriage was solemnized at Ahmedabad.

12. In view of the forgoing discussion the present application is not entertained at this stage and is disposed of.

13. The applicant may pursue the objection raised by her questioning the maintainability of the H.M.P. 1004 of 2009 in the Family Court at Ahmedabad and the jurisdiction of the learned Family Court at Ahmedabad to hear and decide the said H.M.P. If the said issue is decided against the applicant it would be open to the applicant to take appropriate action and initiate appropriate proceedings including the option of preferring fresh application under Section 24 of the Civil Procedure Code seeking transfer of the proceedings relating to H.M.P. No. 1004 of 2009 on any appropriate permissible ground or if the applicant considers it appropriate and necessary, even to revive this very petition by filing appropriate application. However for the reasons mentioned hereinabove present application does not deserve to be entertained at this stage and the Court is not inclined to exercise discretion at this stage.

Hence, the application is rejected.

(K.M.THAKER,J.) Suresh*